NATIONAL COMPANY LAW TRIBUNAL

CHANDIGARH BENCH, COURT-II, CHANDIGARH

CP No. 68/Chd/Hry/2025

(Under Section 66 and Section 52 of the Companies Act, 2013 read with National Company Law Tribunal (Procedure of Reduction of Share Capital of the Company) Rules, 2016)

IN THE MATTER OF:

ONE QUBE REALTORS PRIVATE LIMITED
CIN: U45200HR2008PTC095959
Through Mr. Anish Kedia, Authorised Signatory
Registered Address: Plot No. 422-B, Udyog Vihar,
Phase IV, Village Dundahera, Gurgaon,
Gurugram - 122001, Haryana, India

....Petitioner Company

Order delivered on: 26.02.2026

CORAM: KHETRABASI BISWAL, MEMBER (JUDICIAL)
: KAUSHALENDRA KUMAR SINGH, MEMBER (TECHNICAL)

Present: -

For the Petitioner Company : Mr. Vaibhav Sharma, Advocate
For the Income Tax Department : Mr. Varun Issar, Senior Standing Counsel

ORDER

1. The present Petition has been filed by One Qube Realtors Private Limited (hereinafter referred as '**Petitioner Company/Company**') through its Authorised Signatory, Mr. Anish Kedia under Sections 66 and Section 52 of

the Companies Act, 2013 (hereinafter referred to as the '**Act**') read with National Company Law Tribunal (Procedure of Reduction of Share Capital of Company) Rules, 2016 (hereinafter referred to as the '**NCLT Capital Reduction Rules**') for obtaining confirmation from this Tribunal for the proposed reduction of the subscribed and paid-up the share capital of the Petitioner Company.

2. The averments as made in the present Petition are summarized hereunder;

(i) The Petitioner Company was incorporated on 14.01.2008 under the provisions of the erstwhile Companies Act, 1956 as a Public Company in the name and style of 'Ashkit Properties Limited'. Subsequently, on 04.03.2020, the name of the Petitioner Company was changed from 'Ashkit Properties Limited' to 'One Qube Realtors Limited'. On 22.03.2022, the Petitioner Company was converted from a public company to a private company under the name and style of 'One Qube Realtors Private Limited'. The Corporate Identification Number of the Petitioner Company is U45200HR2008PTC095959. The PAN of the Petitioner Company is AAGCA7386Q. The registered address of the Petitioner Company Plot No. 422-B, Udyog Vihar, Phase IV, Village Dundahera, Gurgaon, Gurugram - 122001, Haryana, India.

(ii) The main object of the Petitioner Company is to carry on the business, whether in India or outside, of infrastructure and real estate development, including acquiring, constructing, developing, leasing and dealing in residential, commercial and industrial properties; acting as builders, developers, contractors and engineers for civil and

structural projects; entering into joint ventures as permitted by law; and providing related advisory and consultancy services. Copies of the Certificate of Incorporation, Certificate of Incorporation pursuant to change of name and fresh Certificate of Incorporation consequent upon conversion from public company to private company and Memorandum of Association are annexed as Annexure A and Annexure B, respectively to the petition.

(iii) The Authorised, Issued, Subscribed and Paid-up Share Capital of the Petitioner Company is as follows:

Authorized Share Capital	***Amount in Rs***
2,00,000 equity shares of Rs 10/- each	*20,00,000*
Issued, Subscribed and Paid-Up Share Capital	***Amount in Rs***
1,35,206 equity shares of Rs 10/- each	*13,52,060*

(iv) The Petitioner Company has accumulated losses of Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) over past years, which currently appear as a debit balance in its profit and loss account, as per the unaudited management certified financial statements of the Petitioner Company as on 30.09.2025 appearing in "Reserves and Surplus – Retained Earnings" as part of the "Other Equity". However, the Petitioner Company also has Rs 165,01,97,000/- (One Hundred Sixty Five Crore One Lakh Ninety Seven Thousand only) standing in its securities premium account. The Petitioner Company proposed to utilise the balance available in the securities premium account to set off these accumulated losses entirely. This adjustment is purely a matter of accounting presentation and does not involve any cash

payment to shareholders or any reduction in the number of shares or any change in shareholding pattern, or any adverse impact on creditors. The Petitioner Company is solvent, and this adjustment will enable its balance sheet to reflect a true and fair view of its current financial position, free from the burden of historical losses.

(v) The audited balance sheet and profit and loss account as on 31.03.2025, 31.03.2024 and 31.03.2023 of the Petitioner Company are annexed as Annexure E, Annexure F and Annexure G, respectively to the Petition. There are no qualifications, reservations or any adverse remarks in the audit report issued by the statutory auditor of the Petitioner Company as on 31.03.2025, 31.03.2024 and 31.03.2023. Certified true copies of the unaudited management certified financial statements of the Petitioner Company for the period ended 30.09.2025 is annexed as Annexure D to the Petition.

(vi) The Board of Directors of the Petitioner Company at their meeting held on 06.10.2025 approved the proposed reduction of share capital under Section 66 read with Section 52 of the Companies Act, 2013. A certified true copy of the Board Resolution is annexed as Annexure H to the Petition, and the list of equity shareholders as on 08.10.2025, duly certified by a Chartered Accountant, is annexed as Annexure K to the Petition.

(vii) The company has 2 (Two) equity shareholders as on 08.10.2025 holding in aggregate 1,35,206 fully paid-up equity shares of Rs 10/- (Rupees Ten only) each, with the second shareholder only holding a single share in the Company who hold shares in capacity as nominee

shareholder. On 06.10.2025, the Petitioner Company sent notices along with the explanatory statements for convening the Extraordinary General Meeting to all the shareholders.

(viii) The Petitioner Company is empowered by virtue of Article 40 of its Articles of Association (annexed as Annexure C to the petition) to undertake the exercise of reduction of its share capital and securities premium account, which has been reproduced below:

"The Company may, by special resolution, reduce in any manner and with, and subject to, any incident authorised and consent required by law:

(i) its share capital;

(ii) any capital redemption reserve account; or

(iii) any share premium account"

(ix) The Extraordinary General Meeting of the shareholders of the Petitioner Company was held on 08.10.2025. At the Extraordinary General Meeting of the Petitioner Company, the shareholders of the Petitioner Company have unanimously approved the proposed reduction of share capital by passing special resolution. Certified true copy of the special resolution passed by the shareholders of the Petitioner Company and minutes of the Extraordinary General Meeting held on 08.10.2025 is annexed as Annexure J to the Petition.

(x) The relevant extracts of the special resolution approved by the shareholders of the Petitioner Company in accordance with Section 66(1) of the Act at the Extraordinary General Meeting held on 08.10.2025 (Copy of minutes is annexed as Annexure J to the petition) is reproduced herein below:

*"**RESOLVED THAT** pursuant to the provisions of Section 66 read with Section 52 and any other applicable provisions of the Companies Act, 2013 (the '**Act**'), including any statutory modification(s) or amendment(s) or re-enactment(s) thereof for the time being in force, the National Company Law Tribunal (Procedure for Reduction of Share Capital) Rules, 2016 and other relevant rules made there under and in terms of Article 40 of the Articles of Association of the Company and confirmation by the Hon'ble National Company Law Tribunal, Chandigarh Bench, ('**NCLT**') and / or any other regulatory authority as may be prescribed under the Companies Act in this regard and such other approvals as may be required, the consent of the shareholders of the Company be and is hereby accorded to utilize Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) out of the balance available in the securities premium account to set-off the entire accumulated losses i.e., the debit balance in the profit & loss account of Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) as per the unaudited management certified financial statements of the Company as on 30th September, 2025 appearing in "Reserves and Surplus – Retained Earnings" as part of the "Other Equity" (hereinafter referred to as '**Reduction of Share Capital**').*

***RESOLVED FURTHER THAT** pursuant to the Reduction of Share Capital, all the pre-reduction shareholders will remain as the shareholders of the Company and there will be no change in their shareholdings.*

***RESOLVED FURTHER THAT** the balances in the shareholder's funds post the proposed Reduction of Share Capital shall be as follows:*

Particulars	***Pre-reduction as on 30th September, 2025***	***Adjustments***	***Post-reduction***
Paid-up share capital (A)			
Equity share capital	*13,52,060*	-	*13,52,060*
Total	***13,52,060***	-	***13,52,060***
Other equity (B)			
Retained earnings	*(99,59,14,810)*	*99,59,14,810*	*Nil*

Securities Premium	*1,65,01,97,000*	*(99,59,14,810)*	*65,42,82,190*
Total	***65,42,82,190***	*Nil*	***65,42,82,190***
Total (A+B)	***65,56,34,250***	-	***65,56,34,250***

(xi) The results of voting in the Extraordinary General Meeting of the Petitioner Company held on 08.10.2025 are as follows:

Class of Shareholders	Number of Members Present and Voting	Number of Shares Held by Them	Number of Members Who Voted in Favour	Number of Shares Held by Them (Favour)	Number of Members Who Voted Against	Number of Shares Held by Them (Against)
Equity	2	1,35,206	2	1,35,206	Nil	Nil

(xii) The Petitioner Company has duly filed e-form MGT-14 with the Registrar of Companies, NCT of Delhi and Haryana, intimating the passing of special resolution by shareholders. A copy of the e-form MGT-14 is annexed as Annexure L to the Petition.

(xiii) The Petitioner Company, as on 30.09.2025, has 0 (NIL) secured creditors and 34 (Thirty Four) unsecured creditors having value of Rs 4,20,80,82,411/- (Rupees Four Hundred Twenty Crores Eighty Lakhs Eighty Two Thousand Four Hundred Eleven only). Certificate obtained from the statutory auditors of the Petitioner Company to this effect is annexed at Annexure M to the Petition.

(xiv) The pre and post share capital structure of the Petitioner Company, following the reduction of its capital is as follows:

Particulars	**Pre-reduction (Amount in Rs)**	**Post-reduction (Amount in Rs)**
Equity share capital	13,52,060	13,52,060
Securities premium account	165,01,97,000	65,42,82,190
Retained earnings	(99,59,14,810)	Nil

(xv) The proposed reduction of share capital does not involve extinction, reduction or diminution of any liability in respect of unpaid share capital, if any. The reduction of share capital does not involve cancellation of any paid-up share capital which is lost or is unrepresented by available assets. The proposed reduction of share capital would not in any way adversely affect the ability of the Petitioner Company to honor its commitments or prejudicially affect the rights of the creditors of the Petitioner Company.

(xvi) As per the Certificate issued by the Statutory Auditors of the Petitioner Company, the accounting treatment proposed by the Petitioner Company for the Reduction of Share Capital is in accordance with the Accounting Standard specified in Section 133 of the Companies Act, 2013 or any other applicable provisions of the Companies Act, 2013 and is attached as Annexure Q of the petition.

(xvii) The Petitioner Company has stated that no investigation or proceedings under the erstwhile Companies Act, 1956 or the Companies Act, 2013, is pending in relation to the Petitioner Company. Further, there are no winding up or insolvency proceedings pending against the Petitioner Company under the Companies Act or the Insolvency and Bankruptcy Code, 2016.

(xviii) The form of minutes proposed to be registered under Section 66(5) of the Companies Act, 2013 (enclosed as **Annexure O** to the Petition) reads as follows:

"The securities premium account of One Qube Realtors Private Limited is henceforth Rs 65,42,82,190/- (Rupees Sixty Five Crores Fourty Two Lakhs Eighty Two Thousand One Hundred Ninety only), reduced by Rs

99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) from Rs 165,01,97,000/- (One Hundred Sixty Five Crore One Lakh Ninety Seven Thousand only).
At the date of registration of this minute, 1,35,206 (One Lakh Thirty Five Thousand Two Hundred and Six) equity shares of Rs 10/- each are issued and outstanding and deemed to have been fully paid-up."

(xix) Further, a certificate issued by the statutory auditor of the Petitioner Company and declaration by the director of the Petitioner Company that the Petitioner Company is not, as on the date of filing of the petition, in arrears in the repayment of the deposits or the interest thereon is annexed as Annexure R to the petition.

(xx) The interest of the creditors of the Petitioner Company are therefore not prejudicially affected in anyway and they will be paid off in the ordinary course of business since the Petitioner Company has sufficient liquidity and the payment will be made from the funds available with the Petitioner Company.

3. This Tribunal vide Order dated 06.11.2025 directed that the notice of hearing be published in "Business Standard" (English) and "Business Standard" (Hindi) calling for objections, if any, and also directed to issue notice to the statutory authorities, secured and unsecured creditors. In compliance with the order, the Petitioner Company filed compliance affidavit dated 25.11.2025 and stated that the Petitioner Company has duly served the notices to the statutory authorities and unsecured creditors as directed in the order. The Petitioner Company has also published notices in the prescribed form in "Business Standard" (English) and "Jansatta" (Hindi) on 13.11.2025.

4. In compliance with the order dated 06.11.2025 of this Tribunal, the

Regional Director (hereinafter referred to as the '**RD**') filed a report dated 09.02.2026, enclosing the report of Registrar of Companies (hereinafter referred to as the '**ROC**'). As per the ROC report dated 23.12.2025, the Petitioner Company has filed its statutory financial statements and annual return up to the year 2025. It further states that there is no prosecution and / or complaint pending against the Petitioner Company and no inquiry / inspection or investigation is conducted against the Petitioner Company. The observations of RD / ROC and its reply filed by the Petitioner Company by an affidavit dated 13.02.2026 are given below:

Sr. No.	Observations of RD / ROC	Reply by the Petitioner Company
a)	The Company may be asked to state as to whether the notice of the present petition has been served to the unsecured creditors in terms of provisions of Section 66(2) of the Companies, Act, 2013 and rule 3 of the NCLT (procedure of reduction of share capital of company rules) 2016.	The Petitioner Company submits that pursuant to the Section 66(2) of the Companies Act, 2013 and Rule 3(2) of the NCLT (Procedure for Reduction of Share Capital of Company) Rules, 2016 and pursuant to directions of the NCLT vide order dated November 6, 2025, the Petitioner Company has issued notices to all creditors on November 12, 2025 to file their objections if any. An affidavit of service and dispatch as well as publication to this effect has been filed before the NCLT on November 25, 2025 vide diary number 0404116026792025/1.
b)	The petitioner company is wholly owned subsidiary of a foreign company. Thus, the company may be directed to comply with the FEMA regulation.	The Petitioner Company submits that it's a foreign owned and controlled company. The present Petition for Reduction of Share Capital does not entail any cancellation of shares or any payout to its shareholders in cash or kind and therefore, nothing contained in the petition attracts compliance with the FEMA regulations. Without prejudice to the above, the Petitioner Company undertakes to

		comply with the FEMA Regulations, as may be applicable.
c)	As per the financial statement audited for FY 2024-25, company has incurred cash losses of Rs. 2,31,379.64/- thousands for the current year and of Rs. 3,55,539.79/- thousands in the immediately preceding financial year. Company may clarify the same.	The Petitioner Company submits that the aforesaid cash losses are in ordinary course of its business operations. The above observation is factually correct and inconsequential with respect to the proposed Reduction of Share Capital and therefore, not required to be traversed.
d)	As per auditor report, audit trail features was not enabled for certain changes made using privileged / administrative access rights at the application and database level. The company may provide details of such features for which audit trail was not enabled.	The observation of the statutory auditor pertains to the audit trail feature not being enabled for certain changes made using privileged/administrative access rights at the application and database level. The Petitioner Company submits that the said limitation is attributable to the accounting software itself, which does not permit enabling the audit trail feature for changes made through privileged/administrative access rights. This is an inherent technical limitation of the software and not a result of any omission or non-compliance on the part of the Petitioner Company. The audit trail feature has been duly enabled for all regular, user-level transactions recorded in the books of accounts to the full extent permitted by the software. The said limitation is widely prevalent across enterprise accounting software environments and is routinely reported by auditors in accordance with the applicable guidelines prescribed by the Institute of Chartered Accountants of India ('ICAI') for the audit reports. Importantly, the statutory auditors have stated in note 44 of the audited financial statements as on 31.03.2025 of the Petitioner Company that there are no

		instances of audit trail being tampered with in respect of these accounting software where the audit trail has been enabled. Also, the statutory auditors have neither qualified nor modified its opinion in the financial statements on account of the said observation, thereby confirming that the financial statements reflect a true and fair view of the state of affairs of the Petitioner Company. Without prejudice to the foregoing, the Petitioner Company further submits that the aforesaid observation pertains solely to an inherent limitation of the accounting software and has no nexus with the present petition for Reduction of Share Capital. The observation does not cast any doubt on the accuracy or reliability of the financial statements relied upon in the present Petition and is wholly inconsequential to the relief sought herein.
e)	As per the financial statement year ended 31.03.2025, the company has dues of MSME of Rs. 570.83/- thousands. Company may clarify the same.	The outstanding amount of Rs. 570.83 thousands reflected in the financial statements for the year ended 31.03.2025 represents provisions made in the ordinary course of business towards invoices to be raised by Micro, Small & Medium Enterprises ('MSME') trade payables. The said amount does not represent any overdue or disputed liability. The Petitioner Company has a consistent track record of making payments to all its MSME creditors within the agreed credit period, which is less than 45 days, and in compliance with the timelines stipulated under the Micro, Small and Medium Enterprises Development Act, 2006. The Petitioner Company undertakes to continue discharging its obligations towards MSME creditors in the ordinary course of its business operations and within the statutory timelines prescribed

		under the applicable law. Without prejudice to the above, the Petitioner Company submits that the proposed Reduction of Share Capital does not entail any payout or distribution to its shareholders and is merely an accounting adjustment to write off the accumulated losses against the share capital. Consequently, the proposed reduction does not result in any diminution of the assets of the Petitioner Company available to meet its obligations towards creditors, including MSME creditors. No compromise or arrangement is contemplated with any creditor, nor is the amount payable to any creditor being reduced or affected in any manner. The proposed reduction will not adversely affect the ability of the Petitioner Company to honour its commitments or discharge its debts, including MSME dues, in the ordinary course of business.

5. The Income Tax department has filed its report dated 16.02.2026 stating that it has no objection to the proceedings, with a prayer that the interest of the department be protected. The Petitioner Company filed an affidavit cum undertaking on 18.02.2026 to comply with the applicable provisions of the Income Tax Act, 1961 and the rules made thereunder, and discharge such taxes, if any, that arises in light of this reduction of share capital and become payable by the Petitioner Company in accordance with the applicable law.

6. We have heard the Learned Counsel for the Petitioner Company and Learned Counsel for the Income Tax Department and perused the documents placed on record carefully. The observations given by the Statutory authorities have been responded to by the Petitioner

Companies. In light of the clarification given by the Petitioner Companies, the observations as made by the statutory authorities do not appear to have any impediment in sanctioning the proposed Scheme.

7. It is also noted that the Articles of Association of the Petitioner Company authorize it to reduce its share capital. In compliance with the provisions of Section 66(1) of the Act, a special resolution was unanimously passed by the shareholders at the Extraordinary General Meeting held on 08.10.2025 approving the reduction of the share capital of the Petitioner Company. The Petitioner Company has accumulated losses of Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) over past years, which currently appear as a debit balance in its profit and loss account, as per the unaudited management certified financial statements of the Petitioner Company as on 30.09.2025 appearing in "Reserves and Surplus – Retained Earnings" as part of the "Other Equity". However, the Petitioner Company also has Rs 165,01,97,000/- (One Hundred Sixty Five Crore One Lakh Ninety Seven Thousand only) standing in its securities premium account. The Petitioner Company proposes to utilise the balance available in its securities premium account to set off these accumulated losses entirely.

8. Further, it is observed that the Petitioner Company, as on 30.09.2025, has 0 (NIL) secured creditors and 34 (Thirty Four) unsecured creditors having value of Rs 4,20,80,82,411/- (Rupees Four Hundred Twenty Crores Eighty Lakhs Eighty Two Thousand Four Hundred Eleven only).

Notices were duly served to the creditors and no objections to the petition for reduction in share capital has been received by the Petitioner Company from them.

9. It is noted that the Petitioner Company is a solvent company with sound financial position capable of meeting all its outstanding debts. The proposed reduction is not likely to cause any prejudice to the creditors of the Petitioner Company. The creditors of the Petitioner Company are not adversely affected by the proposed reduction of the paid-up equity share capital as there is no reduction in the amount payable to any of the creditors and no compromise or arrangement is contemplated with the creditors. A net-worth certificate indicating positive net-worth issued by a practicing Chartered Accountant is annexed as Annexure N to the petition.

10. In view of the submissions made by the Petitioner Company, we are of the considered view that the reduction of share capital of the Petitioner Company will not have any adverse effect. Accordingly, the present petition is allowed and the reduction of share capital of the Petitioner Company is hereby approved, as set out in the resolutions passed at the Extraordinary General Meeting held on 08.10.2025 and detailed hereunder;

    (i) The reduction of the share capital of **One Qube Realtors Private Limited** resolved on and effected by the special resolution passed at Extraordinary General Meeting of the Company held on 08.10.2025 which resolution in the words and figures following, viz:

*"**RESOLVED THAT** pursuant to the provisions of Section 66 read with Section 52 and any other applicable provisions of the Companies Act, 2013 (the '**Act**'), including any statutory modification(s) or amendment(s) or re-enactment(s) thereof for the time being in force, the National Company Law Tribunal (Procedure for Reduction of Share Capital) Rules, 2016 and other relevant rules made there under and in terms of Article 40 of the Articles of Association of the Company and confirmation by the Hon'ble National Company Law Tribunal, Chandigarh Bench, ('**NCLT**') and / or any other regulatory authority as may be prescribed under the Companies Act in this regard and such other approvals as may be required, the consent of the shareholders of the Company be and is hereby accorded to utilize Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) out of the balance available in the securities premium account to set-off the entire accumulated losses i.e., the debit balance in the profit & loss account of Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) as per the unaudited management certified financial statements of the Company as on 30th September, 2025 appearing in "Reserves and Surplus – Retained Earnings" as part of the "Other Equity" (hereinafter referred to as '**Reduction of Share Capital**').*

***RESOLVED FURTHER THAT** pursuant to the Reduction of Share Capital, all the pre-reduction shareholders will remain as the shareholders of the Company and there will be no change in their shareholdings.*

***RESOLVED FURTHER THAT** the balances in the shareholder's funds post the proposed Reduction of Share Capital shall be as follows:*

Particulars	***Pre-reduction as on 30th September, 2025***	***Adjustments***	***Post-reduction***
Paid-up share capital (A)			
Equity share capital	*13,52,060*	-	*13,52,060*
Total	***13,52,060***	-	***13,52,060***
Other equity (B)			
Retained earnings	*(99,59,14,810)*	*99,59,14,810*	*Nil*
Securities Premium	*1,65,01,97,000*	*(99,59,14,810)*	*65,42,82,190*
Total	***65,42,82,190***	*Nil*	***65,42,82,190***
Total (A+B)	***65,56,34,250***	-	***65,56,34,250***

RESOLVED FURTHER THAT *M/s Bobby Parikh Associates, be and are hereby appointed as the consultants for end-to-end advisory services in relation to the Reduction of Share Capital of the Company on the terms and conditions as placed before the Board of Directors of the Company.*

RESOLVED FURTHER THAT *any Director of the Company or Mr. Neeraj Toshniwal or Mr. Ankur Goel or Mr. Anish Kumar Kedia, Authorized Signatories of the Company (collectively referred to as '**Authorized Signatories**') be and are hereby severally authorized, to do all such acts, matters, deeds and things as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise, for the purpose of giving effect to the Reduction of Share Capital of the Company as placed before the meeting or to any modification thereof, and, without prejudice to the generality of the foregoing, in particular may:*

(i) Verify, sign, swear, affirm, declare, deliver, execute, make, enter into, acknowledge, record, file and perfect all deeds, declarations, instruments, affidavits, applications, petitions, objections, notices and writings whatsoever as may be usual, necessary and proper in relation to the matter aforesaid;

(ii) To accept services of notices or other processes which may from time to time be issued in connection with the matter aforesaid;

(iii) To produce all documents, matters or other evidence in connection with the matters aforesaid and all and any other proceedings incidental thereto or arising thereat;

(iv) To make or prepare any applications, petitions, appeals and judges summons before any court, tribunal, or all relevant authorities and respond to the appropriate authorities;

(v) To file applications, petitions, affidavits and / or other legal documents as may be required for confirmation of Reduction of Share Capital of the Company by the NCLT and to make such alterations, modification or amendments therein as may be expedient or necessary for complying with the requirements or conditions imposed by the NCLT and /or any other appropriate authorities;

(vi) To appoint advocate(s) to file the application, petition, affidavits and such other documents as may be necessary for the Reduction of Share Capital and represent the Company before the NCLT and / or any other regulatory authorities and to apply and obtain certified copies of the orders, decrees, directions, etc. that may be passed by the NCLT and / or any other regulatory authorities;

(vii) To appoint and retain services of such professionals as may be necessary and authorize them to do all such acts, deeds, matters and things as may be required to bring the Reduction of Share Capital into effect;

(viii) To authenticate all the necessary documents as "Certified Copies" or in any other manner as may be required;

(ix) To comply with all the necessary formalities, compliances and disclosures in this regard and to file the necessary forms or documents with the Registrar of Companies, the Reserve Bank of India and any other authorities as may be necessary and to do and perform all such other acts, matters, deeds and things

as may be necessary or required to give effect to this resolution: and

(x) To make, file, submit or deliver any or all applications, forms, writings, declarations, submissions and other documents with the Depositories, Depository Participant(s) or Registrar and Transfer Agent (RTA), as may be required for the abovesaid purpose including but not limited to corporate action, applying for new ISIN etc. and to perform all such other acts, matters, deeds and things as may be necessary or required in this regard.

RESOLVED FURTHER THAT *the Board of Directors of the Company be and are hereby severally authorized, in its absolute discretion, to bring into effect this resolution on such other terms and conditions as it may consider appropriate and to accept such other conditions and modifications as may be prescribed by the NCLT and other appropriate authorities while according their approval or consent to this resolution or to suspend, withdraw or revive the proposal for Reduction of Share Capital from time to time as may be specified by any statutory authority or as the Board may suo-moto decide.*

RESOLVED FURTHER THAT *any Director of the Company or Mr. Neeraj Toshniwal or Mr. Ankur Goel or Mr. Anish Kumar Kedia, Authorized Signatory of the Company be and are hereby severally authorized to sign the copy of this resolution as a certified true copy thereof and furnish the same to whomsoever concerned."*

(ii) The minute set forth in the schedule is as under:

"The securities premium account of One Qube Realtors Private Limited is henceforth Rs 65,42,82,190/- (Rupees Sixty Five Crores Fourty Two Lakhs Eighty Two Thousand One Hundred Ninety only), reduced by Rs 99,59,14,810/- (Rupees Ninety Nine Crores Fifty Nine Lakhs Fourteen Thousand Eight Hundred Ten only) from Rs 165,01,97,000/- (One Hundred Sixty Five Crore One Lakh Ninety Seven Thousand only).

At the date of registration of this minute, 1,35,206 (One Lakh Thirty Five Thousand Two Hundred and Six) equity shares of Rs 10/- each are issued and outstanding and deemed to have been fully paid-up."

(iii) A copy of this order shall also be served upon the Department of Income Tax through Nodal Officer and also the concerned Assessing Officer for necessary action at their end. An NOC from the Department of Income Tax should be obtained vis-a-vis taxability or TDS be made before any such payout is made to the Shareholders.

(iv) A certified copy of this order including the minute, as approved, be delivered to the ROC within thirty days of this Order.

11. Accordingly, the **Company Petition No. 68/Chd/Hry/2025** stands **allowed** and **disposed of.**

Sd/-
Kaushalendra Kumar Singh
Member (Technical)

Sd/-
Khetrabasi Biswal
Member (Judicial)

Inderjeet